

Employee Confidentiality Agreement

Merrill's business reputation relies on the trust our customers have that we will keep information confidential. As an employee of a division of Merrill or a Merrill-affiliated company, you may have access to confidential information that belongs only to Merrill, its customers, or its vendors. "Confidential information" is any information about Merrill, its customers, or its vendors that is not known to the general public. For example, this may include information about employees, clients, trade secrets, marketing, sales, data processing, compensation, finances, strategies (e.g., mergers and acquisitions), and policies. You could learn this information in many different ways, including customer copy, proofs, printed matter, electronic information, or what someone tells you.

In the course of your duties, you may have access to and/or be exposed to confidential material and information belonging to Merrill customer(s) and/or those customers' clients. You agree that such information will be treated as confidential by you. You also agree that disclosure of such customer confidential information, even inadvertently, may cause significant damages and, therefore, such information will not be disclosed without specific direction by Merrill customer(s).

Unless it is necessary for the performance of your work duties, you may not use, disclose, duplicate, or remove from the premises, any confidential information. The prohibited use and disclosure of confidential information serves two objectives. First, it preserves the competitive advantage of Merrill, its customers, and its vendors. Second, it ensures the integrity of the financial markets and Merrill's business reputation. Federal and state securities laws prohibit the purchase or sale of securities (e.g., stock) until certain confidential information becomes public. Any unauthorized use or disclosure of such information to anyone, including friends, relatives, or other unauthorized persons is not only a breach of confidence, but can be illegal and subject you to criminal and civil liability. Along with the obligation of not using or disclosing Merrill's confidential information, you are similarly obligated not to use or disclose the confidential information from your former employers in your job at Merrill.

Also important to Merrill's continued success is protecting its ownership of the Work Product of its employees. Work product means inventions, improvements, ideas, discoveries, works of authorship, trademarks, trade secrets, processes, know-how – whether or not such are patentable or copyrightable, and whether or not in writing or reduced to practice – conceived or created by you alone or with others. Merrill is the exclusive owner of all such patents, copyrights and related rights. Merrill's ownership rights do not apply to Work Product for which no equipment, supplies, facility or trade secret or other confidential information of Merrill's was used and which was developed entirely on your own time and (1) which does not relate (a) directly to Merrill's business or (b) to Merrill's actual or demonstrably anticipated research or development, or (2) which does not result from any work performed by you for Merrill.

I have read the statements above and understand their importance.

- I will not disclose or use Merrill's confidential information unless it is necessary for the performance of work duties, and I will not disclose or use confidential information of Merrill's vendor(s) or Merrill's customer(s) or their clients absent specific direction by the respective customer(s) or vendor(s).
- I will not try to make money or avoid losing money, or help others make money or avoid losing money, or help others make money or avoid losing money, in the financial markets (trading stocks, bonds, etc.) by using confidential information.
- I will not disclose or use the confidential information of former employers.
- I will promptly disclose to Merrill all Work Product developed by me during my employment, and I will transfer and assign to Merrill all rights to such Work Product and provide Merrill with all assistance it reasonably requires in order for Merrill to perfect, protect, and use its rights to such Work Product.

I understand that if I violate the above, I may be subject to discipline, which may include termination.

Date: _____

Employee (Please print your name here)

Employee Signature

Job Title

Location